



Order under Section 69 Residential Tenancies Act, 2006

Citation: Hebden v Jackson, 2025 ONLTB 95007

Date: 2025-12-10

File Number: LTB-L-084415-24

In the matter of: UNIT C, 19 JUNE AVE
GUELPH ON N1H1H5

Between: Wayne Hebden

Landlord

And

Brandon Jackson

Tenant

Wayne Hebden (the 'Landlord') applied for an order to terminate the tenancy and evict Brandon Jackson (the 'Tenant') because the Tenant did not pay the rent that the Tenant owes.

This application was heard by videoconference on November 19, 2025.

Only the Landlord's legal representative, Lynn Perillo, attended the hearing.

As of 1:30pm, the Tenant was not present or represented at the hearing although properly served with notice of this hearing by the LTB. There was no record of a request to adjourn the hearing. As a result, the hearing proceeded with only the Landlord's evidence.

Determinations:

1. The Landlord served the Tenant with a valid Notice to End Tenancy Early for Non-payment of Rent (N4 Notice). The Tenant did not void the notice by paying the amount of rent arrears owing by the termination date in the N4 Notice or before the date the application was filed.
2. As of the hearing date, the Tenant was still in possession of the rental unit.
3. At the hearing, the Landlord's legal representative advised that the Tenant made a consumer proposal on August 26, 2024 (the "Consumer Proposal") under the Bankruptcy and Insolvency Act, R.S.C. 1985 (the "BIA"), and later filed for bankruptcy on January 16, 2025, which stayed the Board's proceedings in this L1 application for arrears up to January 31, 2025. She further advised that the Landlord served and filed a new N4 for arrears that

arose after that date. The Landlord initially requested another adjournment, noting that the matter had already been adjourned three times by other Members, but ultimately agreed

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with me that a further adjournment was not appropriate and that an order staying the proceedings was the more suitable outcome.

4. Section 69.3(1) of the BIA provides that upon a debtor filing for bankruptcy, all claims provable in bankruptcy are stayed.
5. As a result of the BIA stay, the Board cannot issue an order requiring the Tenant to pay rent arrears that constitute a claim provable in bankruptcy or terminate the tenancy due to rent arrears that constitute a claim provable in bankruptcy. This finding is consistent with the Divisional Court's determination in *Forestwood Cooperative v. Pritz* [2002] O.J. No. 550.
6. In the present case, the Landlord's application is only for non-payment of rent. The rent arrears owing up to the date of the Consumer Proposal are a claim provable in bankruptcy, and the Landlord is not permitted to continue this application with respect to recovery of those rent arrears or seek termination of the tenancy on the basis of the arrears.

It is ordered that:

1. The Landlord's application has been stayed as a result of the Former Tenant's bankruptcy filing pursuant to the BIA. The application is stayed until the Court otherwise decides or until the Former Tenant is discharged from bankruptcy.

December 10, 2025

Date Issued

Colin Elsby

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto
ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

